



Blackstone funds and Perpetual Trustees – HSBC loan portfolio

MN-85047

Phase 1 Determination

Acquisition may be put into effect

18 September 2026

1. Determination and statement of reasons

Notified acquisition	Virgo BidCo Pty Ltd (BidCo), an affiliate of certain funds advised and/or managed by affiliates of Blackstone Inc. (Blackstone), proposes to acquire HSBC Bank Australia Limited's (HBAU) portfolio of Australian home and personal loans under an asset sale and purchase agreement. Under the asset sale and purchase agreement, BidCo would have the right to direct that title in these loans be transferred to a third-party nominee. BidCo intends to direct that title in these loans be transferred at completion to Perpetual Corporate Trust Limited (Perpetual) in its capacity as trustee of three securitisation trusts. Certain home loans originated by HBAU are held within four existing securitisation trusts – the Lion Series 2020-1 Trust, Lion Series 2022 1 Trust, Lion Series 2023-1 Trust and Lion Series 2024-1 Trust (together, the Lion Trusts). Under the asset sale and purchase agreement, BidCo (or one or more nominees of BidCo) would acquire the units held by HBAU in the Lion Trusts. BidCo will nominate ABF Whole Loan Pty Ltd (an affiliate of certain funds advised and/or managed by affiliates of Blackstone, and BidCo's parent) to acquire the sole participation unit and 9 of the 10 residual units in each of the Lion Trusts. Perpetual CT Capital Pty Ltd (a Perpetual Group entity) will acquire 1 of the 10 residual units in each of these trusts. (Together, the Acquisition.)
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	Blackstone is a US-based investment management firm. Perpetual is a Sydney-based trust company and a wholly-owned subsidiary within the Perpetual group of companies (Perpetual Group), of which Perpetual Limited is the ultimate parent company. HBAU is the Australian-owned subsidiary of HSBC Holdings plc (including its affiliates, HSBC). HBAU currently offers a range of financial services in Australia, including retail banking, private banking, asset management and corporate and institutional banking. HSBC has announced it intends to exit its retail banking operations in Australia.
Overlap and relationship between the Parties	There is no material overlap or relationship between HBAU's supply of home and personal loans and the activities of each of Blackstone (including its affiliates) and Perpetual in Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.

	For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC finds that the Acquisition would have a limited effect on competition in the supply home and personal loans in Australia, given: • HSBC's intention to exit its retail banking operations in Australia • the Acquisition is limited to the sale of a 'back book' of loans to parties that are not active in the supply of home and personal loans in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act